

6. 9:00 AM CASE NUMBER: L24-11721

CASE NAME: CRESER CAPITAL FUND VS. MICHELLE FRANCIS

*HEARING ON MOTION IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY JULIA A. CLAYTON (DEF'S COUNSEL) ON 04/01/2026

FILED BY: FRANCIS, MICHELLE

TENTATIVE RULING:

This Motion was continued by counsel for the Defense to 9/1/26, 9am.

7. 9:00 AM CASE NUMBER: L25-01111

CASE NAME: CITIBANK N.A. VS. PETER GILMOUR

*HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON PLEADINGS FILED BY PTLF. ON 04/07/2026

FILED BY: CITIBANK N.A.

***TENTATIVE RULING**

Plaintiff filed a Motion for Judgment on the Pleadings, as well as an accompanying Declaration. The moving papers were timely served by mail on the address for Defendant provided in the Answer.

The Declaration reflects Plaintiff's attempt to meet and confer with Defendant prior to filing of this Motion, as required by CCP 439.

The Motion is unopposed.

Background

Plaintiff's Motion argues that Defendant's Answer both admits the allegations of the Complaint and offers no defense.

The Complaint alleges a breach of contract, in that Defendant failed to repay a credit loan to Plaintiff in the amount of \$6,894.42. Specifically, the Complaint alleges that Defendant failed to make payments on the contract, that Defendant refuses to pay Plaintiff the amount owed under the contract. Generally, the Plaintiff alleges that they suffered damages.

The agreement, attached to the Complaint, appears to reflect a credit card loan. The agreement reflects terms of acceptance, payment, and payment frequency, as well as consequences for nonpayment. The attachment also includes a document suggesting that the agreement terms were made to Defendant upon her application for the credit card.

The Complaint is a collections matter, under CRC 3.740, and is not verified.

Defendant, in the Answer, admits that all of the statements in the Complaint are true except that he does not know if the balance at issue, of \$6,894.42, as reflected in the Complaint, is correct. He writes, under the section for affirmative defenses, “I do not dispute.”

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

If a material allegation of the complaint is not controverted by the answer, then it will be considered as true. *CCP 431.20(a)*.

When a collections case is not verified, “[A] general denial [of the allegations in a complaint] is sufficient but only puts in issue the material allegations of the complaint.” *CP 431.30(d)*. Moreover, a defendant may place her denial of the allegations in a complaint on the ground that she “has no information or belief upon the subject sufficient to enable him or her to answer an allegation of the complaint.” *CCP 431.30(e)*.

A judge must deny a plaintiff’s motion for judgment on the pleadings if the defendant’s answer raises any material issue or sets up any affirmative matter constituting a defense. *Allstate Ins. Co. V KimW.* (1984) 160 CA3d 326, 330–331.

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

A court can grant a motion for judgment on the pleadings with leave to amend. *CCP 438(h)(1)*. The court must use the standards in deciding whether to granting to leave to amend as it would for a demurrer. *People v. \$20,000 U.S. Currency* (1991) 235

Cal.App.3d 682, 692.

With respect to demurrers, courts are generally quite liberal in allowing amendment. When a demurrer is sustained, the court must determine if “there is a reasonable possibility that the defect can be cured by amendment.” *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.

In the instant matter, Defendant admits all of the elements of a breach of contract, the sole cause of action. He admits the existence of damages by offering no denial to Plaintiff’s allegation that he failed to pay an agreed-upon amount, and that they Plaintiff did, in fact, suffer damages. The only matter of dispute raised by Defendant is the amount of damages, not the existence of damages.

The court does not find that there exists a reasonable possibility that the deficient Answer can be cured through amendment.

Disposition

Plaintiff’s Motion is Granted.

This matter will be scheduled for a further hearing for Plaintiff to prove the amount of damages. That hearing will be 9/30/26, 10am.

Plaintiff to file Order and notify Defendant.

8. 9:00 AM CASE NUMBER: L25-02555
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. PAULINE JETTIE
*HEARING ON MOTION IN RE: MOTION FOR SUMMARY JUDGMENT
FILED BY:
***TENTATIVE RULING**

Background

On 12/22/25, Plaintiff filed a Motion for Summary Judgment (the “MSJ”), along with a Declaration and a Separate Statement of Undisputed Material Facts. The Motion is unopposed.

Plaintiff timely served Defendant via mail service on counsel of record as of 12/22/26. The court notes that a Change of Attorney form was filed on behalf of Defendant on 1/13/26, but that the new attorney is a member of the same law firm, with the same